INDEPENDENT REGULATORY COMPLIANCE ASSESSMENT

# HOSPITAL PRICE TRANSPARENCY AUDIT

Independent Diagnostic Gap Analysis & Regulatory Exposure Assessment (45 CFR Part 180)

DATE: November 05, 2026

STANDARD: Hospital Price Transparency (45 CFR 180)

AUDITED HEALTHCARE FACILITY

## Nemours Children's Hospital

Target MRF Resource: cms-nch-de-combined.xlsx [->]

**NON-COMPLIANT FORMAT: UNAUTHORIZED FILE TYPE (.XLSX)** — Statutory 45 CFR Section 180.50(c)(2) Violation

| SCANNED ROWS | FLAGGED VIOLATIONS | SAFETY SCORE |
|---|---|---|
| 0 | 1 | 0.0% (Grade F) |
| Machine-Readable CDM Records | File-Level Statutory Defect | Compliance Benchmark (>=90%) |

### EXECUTIVE DIAGNOSTIC SUMMARY : STATUTORY FINDINGS

An algorithmic compliance audit of the public Machine-Readable File (MRF) published by Nemours Children's Hospital identified an unauthorized file format under federal price transparency mandates (45 CFR Section 180.50(c)(2)). CMS strictly mandates standard charges in standardized CSV or JSON formats; proprietary spreadsheet (.xlsx, .xls) and document formats are prohibited. Because the published file could not be ingested due to this pre-ingestion format barrier, internal chargemaster rows were not audited.

Publishing standard charge data in an unauthorized format constitutes an explicit statutory non-compliance defect, leaving the facility vulnerable to automated CMS enforcement audits, mandatory Corrective Action Plans (CAP), and compounding daily civil monetary enforcement liabilities under 45 CFR Section 180.90.

| CMS SCHEMA INTEGRITY | PAYER RATE COMPLETENESS | ENFORCEMENT LIABILITY |
|---|---|---|
| INVALID FORMAT | NOT AUDITED | ACTIVE CMP EXPOSURE |
| 45 CFR § 180.50(c)(2) | Pre-Ingestion Barrier | 45 CFR Section 180.90 |

PUBLIC AUDIT NOTICE: This independent technical diagnostic report evaluates publicly available hospital standard charge datasets pursuant to federal Hospital Price Transparency mandates (45 CFR Part 180).

SECTION I : REGULATORY RISK ASSESSMENT

# Statutory Validation Failure & Enforcement Risk

Federal price transparency regulations (45 CFR Part 180) mandate public machine-readable standard charges. Publishing in unauthorized formats or non-compliant schemas halts programmatic ingestion and exposes the facility to statutory enforcement actions and compounding daily civil monetary penalties under 45 CFR Section 180.90.

### STATUTORY CIVIL MONETARY PENALTIES (45 CFR SECTION 180.90)

The Centers for Medicare & Medicaid Services (CMS) strictly enforces MRF compliance through automated crawlers and targeted regulatory audits. Hospitals that fail to publish complete standard charge data face daily administrative fines scaled by licensed facility bed count:

**Base Fine (<= 30 beds): $300 / day ($109,500 / year)**

**Scaled Fine (> 30 beds): $300 to $5,500 / day ($10 / bed / day) | Max: $2,007,500 / year**

SECTION II : COMPLIANCE DEFECT LEDGER

# Pre-Ingestion Barrier Audit

Because the published file could not be ingested due to an unauthorized format (such as .zip, .xlsx, or .xls), internal chargemaster rows were not audited. The statutory defect recorded below is strictly at the file level.

| TOTAL DETECTED DEFECTS | DEFECT FREQUENCY RATIO |
|---|---|
| 1 | N/A |
| Statutory Defect | Pre-Ingestion Barrier (0 Ingested) |

### STATUTORY ENFORCEMENT & ADMINISTRATIVE ESCALATION TIMELINE (45 CFR SECTION 180.70 - 180.90)

CMS administrative enforcement protocols triggered upon non-compliance detection:

**1. Written Warning Notice | 30-Day Statutory Opportunity to Cure**

CMS issues formal written warning notice citing unauthorized file format non-compliance under 45 CFR Section 180.50(c)(2).

**2. Mandatory Corrective Action Plan (CAP) | Formal Remediation Protocol**

Hospital must submit a detailed CAP within 30 to 90 days outlining technical remediation steps, validation gates, and milestones.

**3. Formal CMP Notice of Imposition & Non-Compliance Public Registry**

Issuance of formal Notice of Imposition of CMP with statutory 60-day Departmental Appeals Board (DAB) hearing deadlines under Part 180 Subpart C, accompanied by immediate, permanent adverse listing on the official public CMS Hospital Price Transparency Non-Compliance Registry under 45 CFR Section 180.90.

SECTION III : SAMPLE VIOLATION AUDIT

# Verified Statutory Format Record

Below is the verified statutory format non-compliance record identified for your published file. Because the file was published in an unauthorized format under 45 CFR Section 180.50(c)(2), internal chargemaster rows could not be parsed or audited.

| ROW # | CPT / CODE | VIOLATION TYPE | DESCRIPTION & STATUTORY JUSTIFICATION |
|---|---|---|---|
| **File Level**<br>Pre-Ingestion | **FORMAT**<br>Scope | **Non-Compliant File Format** | **Facility published standard charges in unauthorized proprietary format '.xlsx'.**<br>Under 45 CFR Section 180.50(c)(2), hospital standard charges must be published strictly in standardized CSV (.csv) or JSON (.json) schema formats. |

## PRE-INGESTION AUDIT STATUS: CHARGEMASTER ROWS NOT AUDITED

The compliance defect documented above represents a file-level statutory format barrier under 45 CFR Section 180.50(c)(2). Because the standard charges dataset was published in an unauthorized spreadsheet format rather than standardized CMS CSV or JSON templates, ingestion halted prior to scanning data rows.
Individual CPT/HCPCS procedure codes, negotiated commercial payer rates, and gross pricing amounts were NOT audited. Consequently, no line-by-line remediation error ledger was generated.

| AUDIT COVERAGE | STATUTORY DEFECT | ROW-LEVEL AUDIT |
|---|---|---|
| **0 Records Scanned** | **Unauthorized Format** | **Not Audited** |
| Pre-Ingestion Barrier | 45 CFR Section 180.50(c)(2) | Ingestion Gate Halted |

*Data Governance Notice: Pre-ingestion diagnostic audit findings are maintained under strict facility confidentiality pursuant to federal compliance standards.*

## CMS TEMPLATE STANDARDIZATION & SCHEMA SPECIFICATION CHECKLIST

Statutory technical architecture requirements under 45 CFR Section 180.50(c)(2) for standardized machine-readable files:

### 1. ROOT METADATA HEADERS

**CMS Data Dictionary v3.0 Table 1**

- Mandatory metadata headers (hospital_name, last_updated_on, version, affirmation, npi).
- Affirmation statement signed by an authorized hospital official under penalty of perjury.

### 2. STANDARD CHARGE DATA MODEL

**CMS-1784-F & OPPS Mandates**

- Gross charges, discounted cash prices, and payer-negotiated commercial rates.
- De-identified minimum and maximum negotiated rates across all standard charge items.

### 3. CLINICAL CODING TAXONOMY

**CMS Table 2 Permitted Code Sets**

- Canonical billing codes: CPT (5-digit), HCPCS, MS-DRG, APR-DRG, and NDC numbers.
- Zero proprietary CDM charge codes without national crosswalk mappings.

### 4. PAYLOAD FORMAT & INTEGRITY

**45 CFR Section 180.50(c)(2) Standards**

- Remediation of Unauthorized Format (.xlsx, .zip, disguised HTML) to standard CSV/JSON.
- Strict RFC 4180 CSV syntax or JSON Schema v3.0 validation without bot barriers.

SECTION IV : TECHNICAL REMEDIATION GUIDANCE

# Statutory Format Remediation & CMS Schema Specifications

To resolve the statutory format defect identified in this diagnostic audit and achieve compliance under 45 CFR Section 180.50(c)(2), standard charges must be migrated to authorized CMS machine-readable templates. Official schema specifications and technical adoption guidance are outlined below.

## STATUTORY NON-COMPLIANCE NOTICE (45 CFR § 180.50)

**CMS Standardized Schema Migration Protocol**

- Official CMS Machine-Readable File schema adoption guidance (CSV/JSON templates)
- Statutory non-compliance documentation citing 45 CFR Section 180.50(c)(2) format mandates
- Pre-ingestion barrier analysis detailing machine-readability conversion requirements
- Technical checklist for hospital IT & revenue cycle teams to eliminate CMP penalty exposure

| TARGET FORMAT | AUDIT COVERAGE | STATUTORY AUTHORITY |
|---|---|---|
| **Standardized CSV or JSON** | **Pre-Ingestion Barrier (0 Rows Audited)** | **45 CFR Section 180.50(c)(2)** |

## CMS SCHEMA SPECIFICATIONS & TECHNICAL ADVISORY

Official CMS template standards, technical resources, and advisory contact:

**Official CMS Repository: https://github.com/CMSgov/hospital-price-transparency**

Authorized Layouts: Standardized CSV (Tall or Wide) | Standardized JSON (v3.0 Schema)

**Direct Outreach:** audit@elitedatasolution.net **Web Portal:** https://elitedatasolution.net

- **File Export:** Export chargemaster directly from hospital billing systems to standardized CSV.
- **Header Syntax:** Ensure file headers strictly follow CMS Data Dictionary v3.0 Table 1 requirements.
- **Crawler Access:** Verify published standard charges file is directly downloadable without bot defense barriers.